

18 - ORANGE EASTSIDE PRECINCT
SITE SPECIFIC CONTROLS

MARCH 2021

Glossary

Orange Local Environmental Plan 2011 (LEP)
Orange Development Control Plan 2004 (DCP)
Orange City Council (Council)
Apartment Design Guide – NSW Department of Planning, Industry and Environment (ADG)
State Environmental Planning Policy No. 65 Design Quality of Residential Apartment Development – SEPP 65

Definitions

Active frontage means that the ground floor of a building is used for one or a combination of the following:

- entrance to retail
- retail shopfront
- entrance to residential/commercial above
- cafe or restaurant if accompanied by an entry Gaps in frontage, blank walls, louvre grilles for plant rooms or car parking areas are not considered to be active frontages.

Building articulation refers to the three dimensional design of a building and its surfaces. Building articulation can enrich the building's street address and character, and should respond to its orientation. Building articulation also includes modelling of the upper level and roof level of a building.

Building envelope means the area within which a building can be built, usually represented in plan and section.

Façade means the external face of a building.

Ground level means the existing ground level at the time of the development application. This is equivalent to the Orange LEP 2011 definition of *Ground Level (Existing).*

Permeability (in an urban design context) means the degree of physical and visual accessibility; more specifically, maximising connections with surrounding streets and activities and making their role clear to potential users.

Public domain means places or buildings within an area which are available for public use and access, including streets, public spaces, open space and public buildings.

Street wall means buildings built to a consistent alignment to define a street edge.

Walkability is the measure of the overall walking conditions in an area. A place is walkable when it has characteristics that invite people to walk, such as minimal slope, paved or even surfaces, clear of obstructions, well lit and supported by appropriate street furniture. Walkability is enhanced when surrounds are aesthetically attractive and paths are shielded or separated from vehicular traffic and other noise sources and where road crossings are minimal and/or designed to prioritise pedestrians.

18.1 INTRODUCTION

The Eastside Precinct is located east of the Orange Central Business District (CBD). The associated objectives and controls aim to guide future development and encourage good urban design outcomes that will support the commercial role of the CBD core through residential development and supporting ancillary uses.

Aims and Objectives of this Section

The purpose of this section of the DCP is to guide the future development of the precinct by:

a) Identifying the vision, development principles, key elements and indicative structure for the future development of the Precinct;
b) Communicating the planning, design and environmental objectives and controls against which the consent authority will assess future development applications;
c) Ensuring the orderly, efficient and environmentally sensitive development of the Precinct; and
d) Promoting a high quality urban design outcome

The following plans and strategies have guided the preparation of the site specific objectives and controls:

- Orange Local Environmental Plan (LEP) 2011
- Orange Development Control Plan (DCP) 2004
- OC Future City – Planning and Design Framework 2020

State Environmental Planning Policy No.65 – Design Quality Residential Apartment Development

State Environmental Planning Policy No 65 – Design Quality of Residential Apartment Development (SEPP 65) applies to residential flat buildings and the residential component of a shop top housing development in the Precincts. Such development is to have regard to SEPP 65 and the *Apartment Design Guide* in addition to the relevant provisions provided in this DCP.

Relationship to other sections of the DCP

This section of the DCP provides specific development provisions for the Eastside Precinct. Development within the Precinct will need to have regard to this section as well as the other sections of the *Orange Development Control Plan 2004*.

In the event of any inconsistency between this section and the other sections of the *Orange Development Control Plan 2004*, this Section will prevail to the extent of the inconsistency.

Application of this section

This section applies to the area of land identified as the Eastside Precinct, including any public domain and open space within this area. The boundaries of the Precincts are identified in Figure 1.

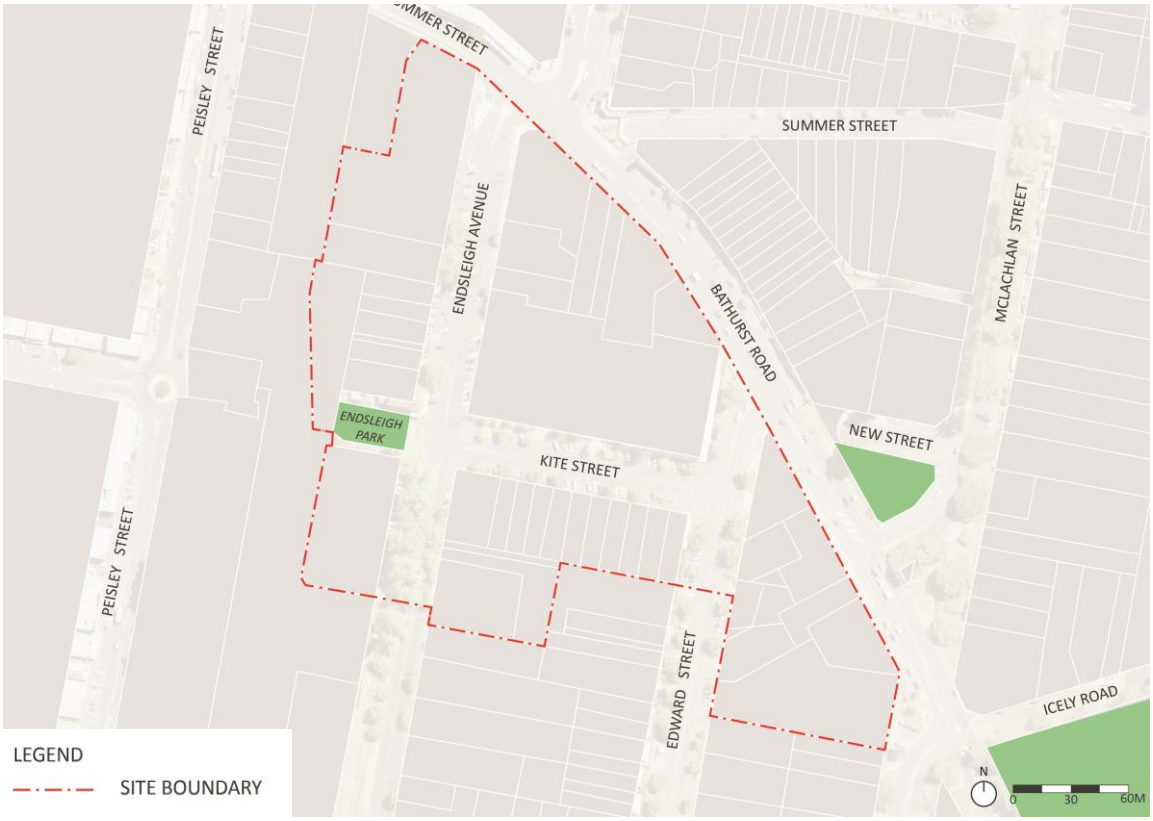


FIGURE 1: SITE PLAN

18.2 EASTSIDE PRECINCT

Vision
Celebrate the Eastern Gateway into the Orange CBD with high quality development and public domain outcomes.

Objectives

- Improve the arrival experience to Orange from the East.
- Ensure that new development complements the desired future character of the precinct which responds to the orientation, street pattern, street width, existing development, heritage buildings, street block size, land use and protects important public view corridors.
- Support the sustainable activation with sensitive in-fill development whilst allowing for the continued operation of appropriate existing uses.
- Ensure land uses support the needs of the local community and enhance uses in the CBD.
- Provide a new street transport network that improves amenity, encourages walking and cycling.
- Retain important views by extending vistas along existing streets, parks and public domains.
- Create pedestrian orientated streets and spaces.
- Ensure suitable amalgamation of sites to ensure no isolated sites occur.

18.3 LOT SIZE AND CONSOLIDATION

Objectives

A. To promote the efficient use of land.
B. To ensure lot size is sufficient for development and associated landscaping, parking, vehicular and pedestrian access.
C. To ensure surrounding sites can be economically developed.
D. To encourage where necessary the amalgamation of land.

Controls

1. Applicants must satisfy Council that adjoining parcels not included in their development site are capable of being economically developed.
2. Council may require an applicant to demonstrate that adjoining parcels can be developed independently in a manner consistent with this plan without undue constraint or impact. Particularly in terms of solar access, privacy between sites and traffic impacts of separate or additional driveways on a main road.

Reference

- NSW Land and Environment Court Planning Principles on isolation of site by redevelopment of adjacent site(s) *[2004] NSWLEC 251* at 17-19

18.4 BUILT FORM

18.4.1 Building Design

Objectives

A. To promote buildings of articulated design and massing, with building facades that contribute to the character of the street and provide useable external spaces.
B. To ensure buildings are of a compatible scale that contribute to and enhance the neighbourhood character.
C. To ensure buildings address the street frontage.
D. To ensure that development does not unreasonably diminish sunlight to adjoining properties including open space areas.
E. Enhance prominent and highly visible corner sites and enable opportunities to reinforce vistas and street corridors with building structures.
F. To encourage building design that reflects the precinct character and is designed sustainably.
G. Provide a range of building heights, typologies and architectural styles to create architectural diversity and visual interest.
H. Ensure new development is designed to minimise negative impacts on the surrounding amenity in relation to privacy and solar access.
I. Ensure new development does not impact on key view corridors.
J. Encourage buildings that enhance views to and from the precinct.
K. Provide a transition of building heights to the built form in adjacent precincts.

Controls

1. Building facades are to incorporate a range of materials that relate sympathetically to items of heritage significance.
2. The selection and mix of building materials must complement the overall composition and emphasise the scale, proportion and rhythm of the facade. Heavy materials such as brick, stone and concrete can provide a solid building base or express key elements, whilst lighter materials such as glazing, cladding and lightly coloured rendered surfaces reduce perceived bulk and add relief to the facade.
3. Strengthen the relationship to the street through the use of entry lobbies, entry porches, loggias, balconies, bay windows.
4. Where a building addresses two streets of different hierarchy the primary street frontage should be reflected through detail of the facade.
5. Design corner buildings to assert visual prominence through facade articulation, materiality, roof prominence and increased height.
6. Ensure the configuration of buildings and structures do not impact on public open space by providing solar modelling for 9am, 12pm, and 3pm on the 21 June (mid-winter).
7. Large expanses of blank walls are to be avoided through the use of architectural design features, modelling and fenestration.
8. Where development exposes the blank wall of an adjoining building, a visually interesting treatment is required. This includes contrasting materials, textures, finishes and murals, but does not include billboard advertising signs or other expansive commercial messaging.

9. Building design avoids dead spots at ground floor level, such as car parking frontages, blank walls and recessed spaces.
10. Car parking entrances and services access is not permitted off the primary frontage, unless the development has no other frontage.
11. Development of sites indicated by figure 2 are to be designed to contribute to the intended streetwall of the precinct.

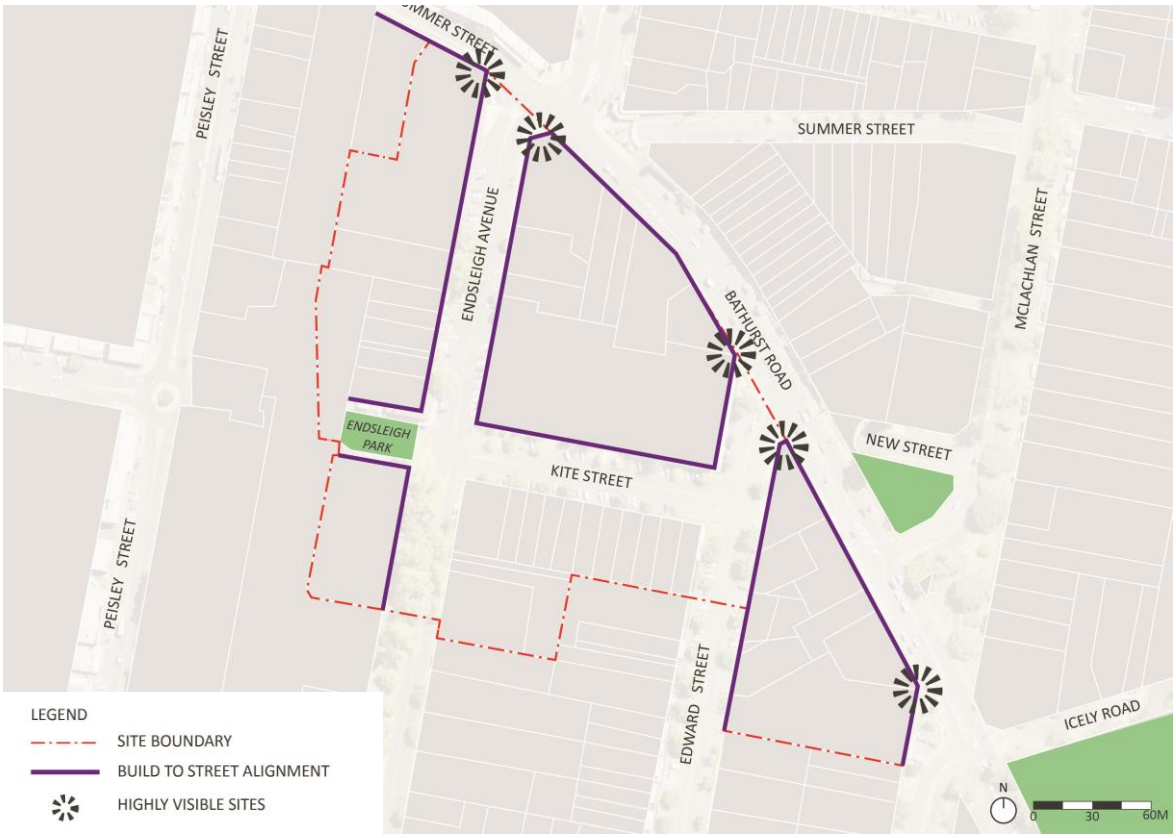


FIGURE 2: BUILT FORM

LEGEND

18.4.2 Building Servicing and Waste Management

Objectives

A. To provide and integrate site services and facilities in a sensitive manner so they integrate with the building and landscape design, enable easy access, and require minimal maintenance.
B. Minimise visual impact by encouraging building services to be located on the ground floor/basement of buildings, where practicable.
C. To provide domestic waste management systems that allow for ease of use by occupants and safe and efficient service by collection contractors.

Controls

1. Ensure that building services are integrated into the design of buildings. Building service elements include garbage rooms, mailboxes, fire hydrant boosters, electrical substations, downpipes, and plant rooms and satellite/communications structures.
2. Provide mailboxes adjacent to the main entrance and integrated into a wall of the building where possible, ensuring that they are secure and can accommodate large articles such as newspapers.
3. Locate any ancillary structures such as plant rooms and satellite dishes away from the building entry, communal and private open spaces, and bedrooms.
4. A waste management plan is required for any application that details the number of waste, recycling and organics bins to be provided.
5. Written evidence is to be provided to Council indicating that the proponent has conversed and co-designed servicing areas that are compatible with the servicing needs of the provider.
6. Waste is to be managed on site and storage areas should be incorporated into the design of the development and not be visible from the street.

18.4.3 Building Setbacks

Objectives

A. To enhance the arrival experience to the Orange CBD.
B. To provide continuity in street wall and building setbacks that reinforce the street edge.
C. Manage setbacks to enhance amenity in relation to daylight, outlook, view sharing, ventilation, and privacy in residential buildings and serviced apartments.
D. Side and rear setbacks should allow ventilation, daylight access, view sharing, increased privacy and help reduce adverse wind effects.

Controls

1. Setbacks for development within the Eastside Precinct must be consistent with figure 3.
2. Development on major roads is to have a 3 meter setback above street wall height. Street wall setbacks must then be consistent with figure 3.

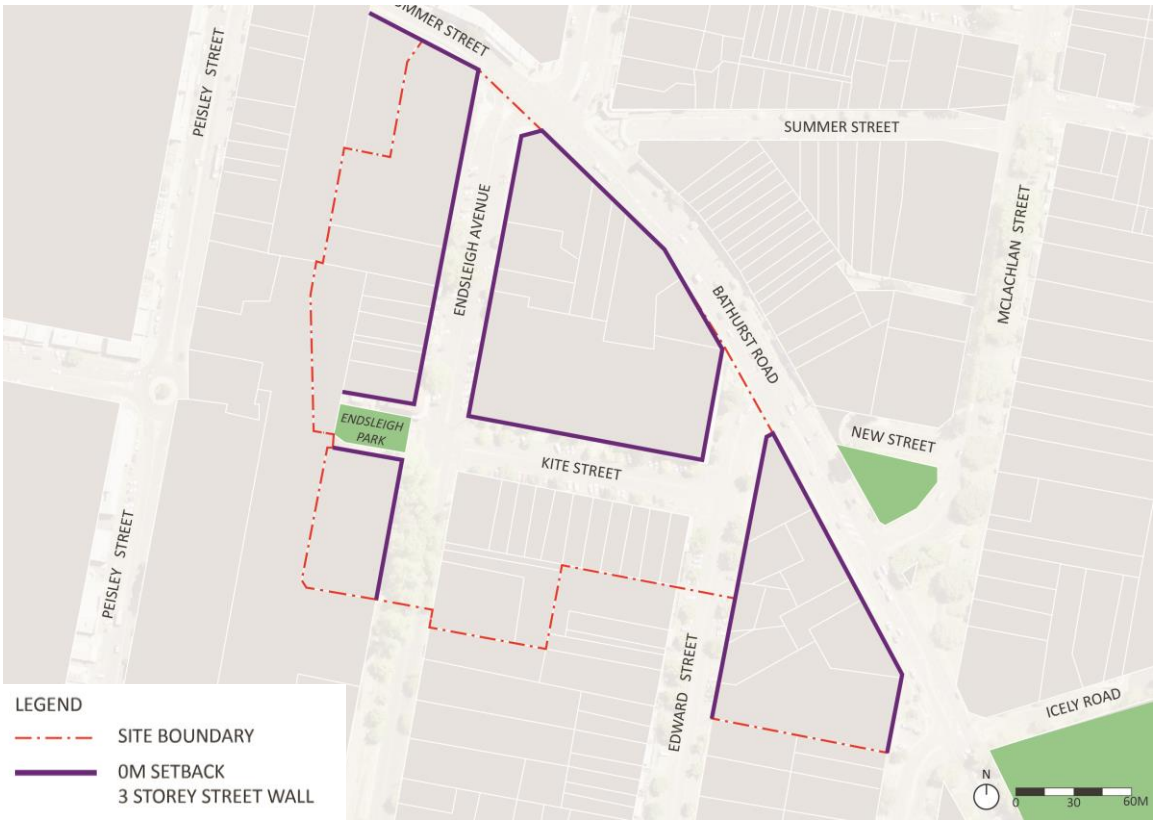


FIGURE 3: SETBACKS

18.4.4 Active Frontages

Objectives

A. Provide active frontages along the precinct's streets and public places to encourage a vibrant urban environment that facilitates community activity and safety.

Controls

1. Active frontages are to be consistent with figure 4.
2. A building has an 'active street frontage' if all premises on the ground floor of building presents to the street or the public domain and are used for the purposes of business or retail premises.
3. New buildings are to demonstrate compliance with the following controls:
    a. Ground floor frontage to be activated by retail and business premises
    b. No ground floor residential is permitted
    c. Showrooms are permitted within areas identified with an active street frontage
    d. Locate ground levels at grade with finished footpaths
    e. Reinforce corner frontages on primary streets with shop front windows
    f. Residential lobbies are permitted off the street frontage
    g. No vehicle access permitted unless the development has no other street frontage

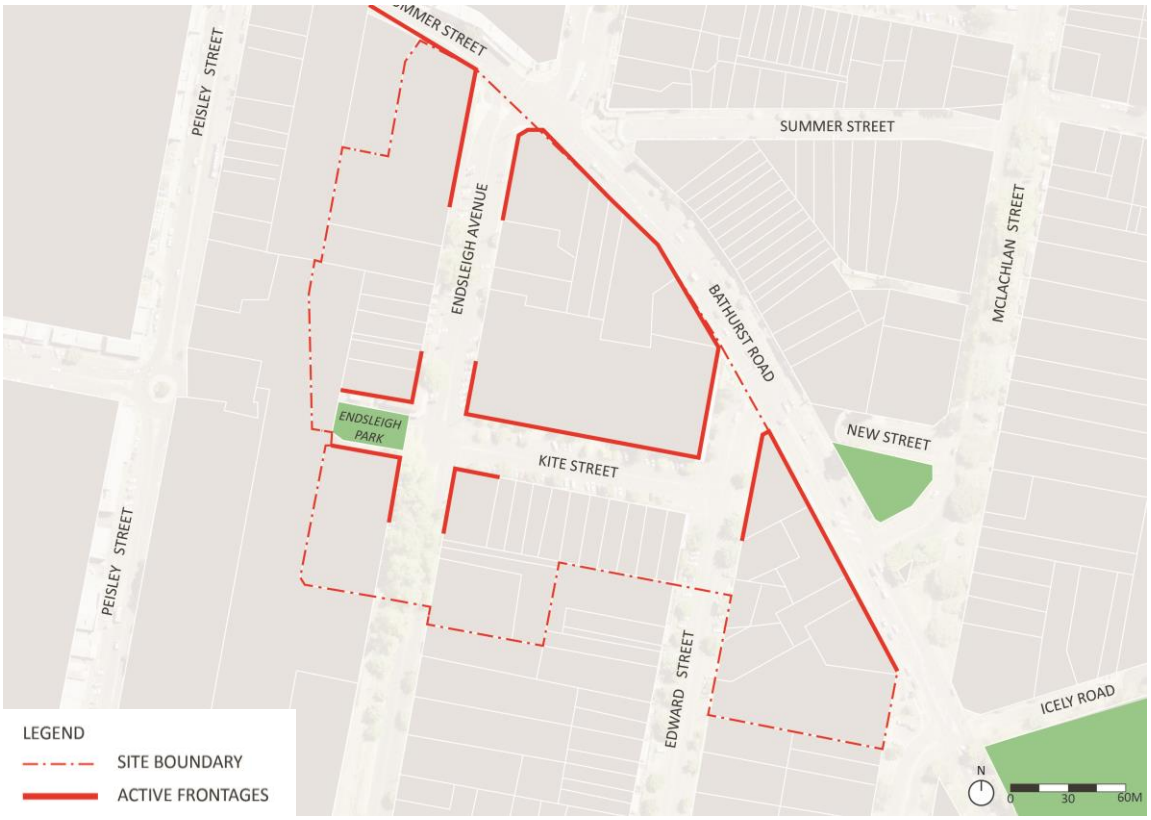


FIGURE 4: ACTIVE FRONTAGES

18.4.5 Heritage

Objectives

A. Ensure development maintains the heritage significance of the individual buildings and the group of buildings as a whole.
B. New development within the vicinity of the heritage items should be designed and sited to minimise impact on the heritage significance of the item and its setting.

Controls

1. New development should be in accordance with Councils *Development Control Plan - Heritage Infill Guidelines 2004*.
2. View corridors to landmarks and significant heritage items must be protected where possible. Applicants may be required to prepare photo montages of the proposed development to illustrate the impact on views.
3. Development affecting a heritage item is to achieve the following:
    a. Minimise the extent of exterior alterations.
    b. Use traditional techniques and materials, unless contemporary techniques and materials result in a better conservation outcome.
    c. Where required to be adapted to meet contemporary needs or safety standards, alterations should be reversible and minimal, where possible.



FIGURE 5: HERITAGE

18.4.6 Adaptable Car Parking

Objectives

A. Reduce the reliance for car parking by introducing different types of transport modes through widened footpaths and bicycle paths.
B. Ensure the design of car parking and associated vehicular circulation accommodates future uses, including retail, commercial or residential.

Controls

- Reduce reliance on street car parking by increasing capacity in existing parking sites and introducing a multi-level carpark with commercial frontage to Kite Street.
- Allow for flexibility with the provision of car parking including sub terrain or below ground parking if not significantly constrained by the local water table.
- Reduce the number of car parking spaces applying to residential uses to encourage the use of other modes of transport.

Table 1 – Reduced car parking Provisions

Type of Development	Minimum requirement
Dwelling House	1 space
Residential units, dual occupancies	One bedroom unit – 1 space Two bedroom unit – 1 space Three of more bedroom unit – 1.2 bedroom unit Visitor - 1 space per 5 units

18.5 PUBLIC DOMAIN

18.5.1 Movement and Through Site Links

Objectives

A. To enhance walkability and connectivity through the precinct for pedestrians and cyclists.
B. To ensure future development allows for safe movement and connectivity.
C. Provide connectivity to the CBD via the pedestrian bridge across the railway line.
D. Create connectivity with Colvin Park an enhance public access to the precinct.

Controls

1. Through site links are to be publicly accessible connections through sites, (but not on land dedicated to Council for a public purpose) formalised through a covenant on the title of the land, that provides for unrestricted access for public thoroughfare and maintenance of the public domain.
2. Where a through site link is provided on site, FSR is based on the total site area.
3. Through site links and potential through site links need to be considered as part of any development application.
4. Through site links must be designed in accordance with CTPED principles.
5. Through site links will be provided generally in accordance with figure 6 and, where relevant, must be designed to align with connecting through site link corridors on adjoining sites.

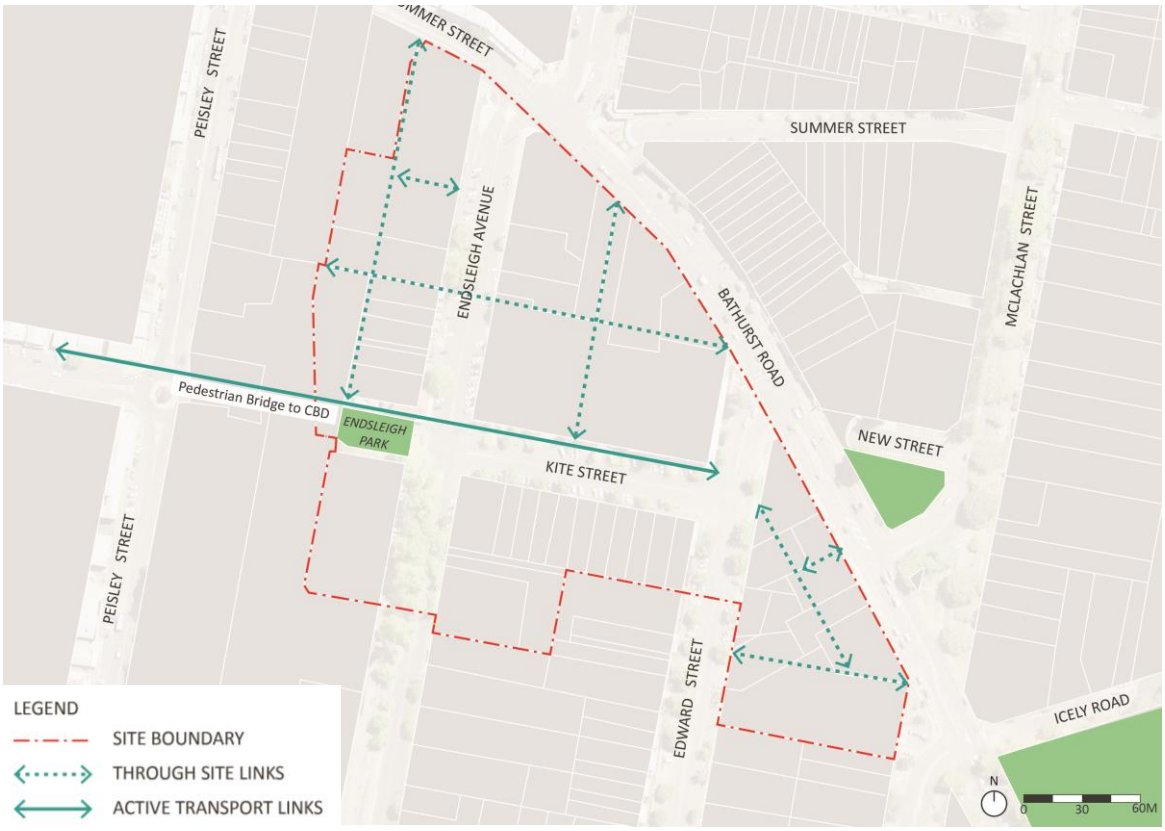


FIGURE 6: MOVEMENT AND THROUGH SITE LINKS

18.5.2 Public Domain and Landscape

Objectives

A. Enhance the entry into the Orange CBD from the east and reflect the broader character of the Orange Region.
B. Improve the environmental performance of urban spaces.
C. To provided reasonable amenity for residents.
D. Enhance public domain by providing opportunities for public spaces, street front activities and public art.
E. Improve the public domain by providing a high degree of amenity, safety and permeability for all users.
F. Enhance public open spaces with lighting to ensure the safety of the community and residents utilising public domain areas through the application of CPTED principles.

Controls

1. Public open space area landscaping is to be configured to minimise concealment opportunities and maximise passive surveillance to encourage active street environments that enhance the sense of safety.
2. Landscaping should consist of low ground cover with trees where low branches are avoided to provide a clear line of sight and avoids concealment opportunities.
3. Public lighting is to be provided to all areas within the public domain to promote safety and provide an attractive environment at night. Such lighting is to be located and directed to minimise light spill into private areas.
4. A landscape concept plan is to be provided in accordance with Councils requirements.

18.5.3 Public Open Space

Objectives

A. Achieve a public open space network that facilitates linkages and accessibility.
B. Enable a flexible approach to the location and configuration of public open space to support connectivity and movement.
C. Increase the amenity and quality of existing open space.
D. Ensure that the location and size of open space assist with stormwater management.

Controls

1. Public open space would be provided generally in accordance with figure 7.
2. Any development near Endsleigh Park must:
    a. Ensure adequate solar access and amenity to the public open space
    b. Incorporate active ground floor frontages to address the park
    c. Provide passive surveillance over the park by incorporating CPTED principles where new development occurs
3. Any redevelopment of a site that includes or is in close proximity to public open space must:
    a. Ensure public space is located to maximise solar access
    b. Ensure through site links are incorporated in the design of public open space
    c. Incorporate active ground floor frontages to address any public open space
    d. Provide passive surveillance of public spaces by incorporating CPTED principles where new development occurs



FIGURE 7: PUBLIC OPEN SPACE

18.6 SUSTAINABILITY

18.6.1 Sustainable Environmental Management

Objectives

A. To protect and maintain hydrological functions of ground water systems.
B. To apply Integrated Water Cycle Management (IWCM).
C. To apply Water Sensitive Urban Design Principles to mitigate water security
D. To protect the environment by maintain or improving the quality of stormwater runoff.
E. Apply sustainable energy efficient design to minimise non-renewable energy usage.
F. To ensure materials used on built form and within the public realm are mitigating the urban heat island effect.

Controls

1. New development should avoid or mitigate any significant adverse environmental impact on the hydrological functions of the groundwater system.
2. Avoid or mitigate potential polluting on site activities to minimise risk to groundwater contamination.
3. Ensure the effective and efficient delivery of water and sewer services to the site while promote sustainable water conservation practices for new residents and managing water demand.
4. Manage urban stormwater on site and encourage harvesting for reuse within the open space precinct and landscaping areas.
5. Integrate WSUD with surrounding street network and open space area to facilitate stormwater management to manage volumes, quality and runoff velocities to predevelopment levels.
6. A WSUD strategy is required to be prepared for the site and include best practice WSUD elements.
7. Apply the principles and properties of thermal mass, glazing, insulation and solar energy are to be recognised and incorporated into the design of residential development.
8. Reduce reliance on artificial lighting and design lighting systems to target only those spaces which require lighting at any particular 'off-peak' time, not the whole building. Incorporate a timing system to automatically control the use of lighting throughout the building.